

Malti Devi v. Dakshinanchal Vidhut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 14 May 2018 · Writ-C No. 17194 of 2018 · **Writ disposed of; petitioner relegated to clause 6.8 objection.**

HEADNOTE

A consumer seeking to set aside a checking report founded on unauthorised use of electricity must first file an objection under clause 6.8 of the U.P. Electricity Supply Code, 2005. The High Court will not issue mandamus to quash the report when that statutory remedy has not been invoked. The petitioner was allowed three days to object, the objection to be heard and disposed of in accordance with law.

FACTUAL SUMMARY

Malti Devi petitioned the Allahabad High Court for a mandamus to set aside a 30 October 2017 checking report of Dakshinanchal Vidhut Vitran Nigam Ltd. The check had given rise to an allegation of unauthorised use of electricity. She came to the writ court without first invoking the objection process under the U.P. Electricity Supply Code, 2005. After hearing counsel for the petitioner and for respondent no. 3, the Division Bench treated the matter as a clause 6.8 UUE assessment and sent her to that statutory remedy.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

uue-objection-alternate-remedy

HOLDING

Where the allegation arising from a premises check is unauthorised use of electricity, clause 6.8 of the U.P. Electricity Supply Code, 2005 supplies the remedy of an objection against the Inspector's assessment. A writ of mandamus to set aside the checking report is not entertained until that objection is filed; if filed, it is to be heard and disposed of in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE CHECKING REPORT DATED 30.10.2017 ON MERITS

Left to a clause 6.8 objection, to be heard and disposed of in accordance with law. ¶ 1